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प्राधिकार से प्रकाशित

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इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।
Separate paging is given to this Part in order that it may be filed as a separate compilation.

LOK SABHA

The following Bill was introduced in Lok Sabha on 2nd May, 2003:—

BILL No. 31 OF 2003

A Bill further to amend the Constitution of India.

BE it enacted by Parliament in the Fifty-fourth Year of the Republic of India as follows:—

- | | |
|---|--------------------------|
| 1. This Act may be called the Constitution (Ninety-sixth Amendment) Act, 2003. | Short title. |
| 2. In article 81 of the Constitution, in clause (3), in the proviso, in clause (ii), for the figures "1991", the figures "2001" shall be substituted. | Amendment of article 81. |
| 3. In article 82 of the Constitution, in the third proviso, in clause (ii), for the figures "1991", the figures "2001" shall be substituted. | Amendment of article 82. |

Amendment
of article
170.

4. In article 170 of the Constitution,—

(i) in clause (2), in the *Explanation*, in the proviso, for the figures “1991”, the figures “2001” shall be substituted;

(ii) in clause (3), in the third proviso, in clause (ii), for the figures “1991”, the figures “2001” shall be substituted.

Amendment
of article
330.

5. In article 330 of the Constitution, in the *Explanation*, in the proviso, for the figures “1991”, the figures “2001” shall be substituted.

STATEMENT OF OBJECTS AND REASONS

Pursuant to enactment of the Constitution (Eighty-fourth Amendment) Act, 2001, the Delimitation Act, 2002 was enacted to constitute the Delimitation Commission for giving effect to the purposes of the aforesaid constitutional amendment. The Delimitation Commission has accordingly been constituted on 12.7.2002 with Shri Justice Kuldeep Singh, a retired Judge of the Supreme Court as its Chairperson and Shri B.B. Tandon, Election Commissioner in the Election Commission of India, and the concerned State Election Commissioners as its *ex officio* members. The main task of the Commission is to readjust the territorial constituencies in the House of the People with regard to the seats allocated to each State and the readjustment of territorial constituencies of the Legislative Assembly of each State. The rationalisation of the constituencies as now provided is on the basis of the 1991 census figures. The Commission is entrusted with the function of also refixing the number of seats reserved for the Scheduled Castes and the Scheduled Tribes on the basis of census of 1991. The Commission has started functioning with the secretarial assistance from the Election Commission of India and is expected to complete its work within two years.

2. The Delimitation Commission in its letter to the Government had stated that in the light of views expressed by various intellectuals including lawyers, political thinkers and other experts, the delimitation, which was being done after a gap of thirty years should not be done on the basis of the out-dated figures of 1991 census.

3. An all-party meeting was held on 13.3.2003 on the functioning of the Delimitation Commission in which many political parties expressed the view that the delimitation of Parliamentary and Assembly constituencies should be done on the basis of 2001 census. It was, therefore, decided in the said meeting that if any political party had any suggestion with regard to alteration of the applicable census from 1991 to the year 2001, it might send the same in writing to the Minister of Law and Justice. Some major political parties which have responded are in favour of 2001 census being the basis of delimitation.

4. Accordingly, it has been decided to provide for readjustment of electoral constituencies, including those reserved for the Scheduled Castes and the Scheduled Tribes, based on the population census for the year 2001, without affecting the number of seats allocated to States in the legislative bodies.

5. The Bill seeks to achieve the objects mentioned above.

ARUN JAITLEY.

G. C. MALHOTRA,
Secretary-General.